

DREAMING OF A DAWN
Evening falls on the Dal Lake in Srinagar

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buried into the annals of history.

First, and most important, there must be a quick return to democracy in the state. The last state elections were held nearly a decade ago, and there has been no elected state government in Jammu and Kashmir for the past five years. Although elections have been held for local bodies, they are not and cannot be a substitute for a duly constituted legislative assembly. While the mainstream parties are grandstanding about boycotting at this stage, it is clear that once the dust has settled, almost all of them will participate in the election.

The Supreme Court has mandated that the elections be held before the end of September 2024; it is critical that elections are completely free and fair. Recall that it was rigged elections in the past, including the infamous 1987 election, that contributed to the alienation on the ground; it is vital that the central government maintain a critical distance from all parties. J&K is still far too important to become an instrument of partisan politics. Let the full play of electoral democracy be evidenced—manifestos, electoral mobilisation, public rallies and the populist competitiveness that is natural to a multi-party democracy.

Second, the Supreme Court has also expressed the hope that statehood is restored to Jammu and Kashmir at the earliest; earlier, Union home minister Amit Shah had also committed to a return of statehood at an appropriate time. The appropriate time is now, so that any angst over the lost battle over Article 370 is overtaken by a sense of victory over regaining statehood. What hurt mainstream actors most was this dilution in status, and J&K's restoration as a state would incentivise robust participation in the election.

Third, Justice Sanjay Kaul has—in his epilogue to the judgment—focused on the need for a truth and reconciliation commission inspired by the role played by such a body in anti-Apartheid South Africa. Such a commission, in his view, will investigate and report on the violation of human rights, both by state and non-state actors, perpetrated in Jammu & Kashmir at least since the 1980s, and recommend measures for reconciliation.

Drawing inspiration from Nelson Mandela, Desmond Tutu and post-Apartheid South Africa, Kaul argues that the principles of "ubuntu", or the art of humanity and inclusiveness, should be central to the process. Indeed, respect for human dignity, compassion, healing and forgiveness, after all, are the first steps all of us must take in J&K and a commission of this nature would provide the forum for "truth telling" and a much-needed catharsis.

Fourth, unpopular as the idea may seem, now may be the time to open a

SC DIRECTIVES

- **The apex court approved the abrogation of Article 370 to end the special status of J&K in Aug. 2019**
- **It sought the restoration of statehood of J&K at the earliest, polls by Sept. 30, 2024**
- **Also recommended is a truth and reconciliation commission to redress past violence**